

All doubts regarding the existence of material issues of fact are resolved in favor of the party opposing summary judgment. (*Sosinsky v. Grant* (1992) 6 Cal.App.4th 1548, 1556, *modified* (June 15, 1992).)

In moving for summary judgment, Defendant assert three grounds to support summary judgment. (1) The County did not own, maintain, or control the subject intersection; (2) The evidence shows no dangerous condition existed at the time of the incident; and (3) Plaintiffs cannot establish the County created the alleged condition or had actual or constructive notice of the condition.

The court finds that there is a triable issue of material fact as to all three of Defendant's grounds for summary judgment.

As to the issue of control, Plaintiff has provided admissible evidence that creates a triable issue of material fact as to the County's control over the intersection in so far as visibility of the intersection and the traffic control signs; see Plaintiff's response to Defendant's UMF 11 and supporting evidence cited thereto; see also Plaintiff's AMFs 2-3, 6-7 and evidence cited thereto.

Turning to the issue of dangerous condition, Plaintiffs AMFs 29, 32 and evidence cited thereto create a dispute as to whether a dangerous condition existed at the time of the incident.

Last, Plaintiff has controverted the issue of notice as there is a dispute as to Defendant's UMFs 43-44; see Plaintiff's response to Defendant's UMFs 43-44 and evidence cited thereto regarding these facts. In addition, Plaintiff's AMFs 23-24, 28 also create a dispute as to actual or constructive notice; see evidence cited in Plaintiff's Separate Statement at 23-24 and 28 regarding these facts.

As there is a dispute as to control, the alleged dangerous condition, and notice, there are triable issues of material fact. Accordingly, the motion for summary judgment must be denied.

25CV-05078

Joann Johnson vs. PG&E Gas Company, et al.

Motion for Leave to File 1st Amended Complaint

Plaintiff's unopposed motion for leave to file a first amended complaint is GRANTED.

Plaintiff is to file their proposed first amended complaint within ten (10) days of this court's order.
